

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ethan Waterman	Team: Squad #10	CCRB Case #: 202102984	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/08/2021 3:30 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 11/8/2022	Precinct: 121		
Date/Time CV Reported Sat, 05/08/2021 6:13 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/17/2021 10:42 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Vasile Dubovici	05254	944191	121 PCT
2. PO Nicholas Bacarella	00223	963385	121 PCT
3. PO Robert Semioli	22740	964286	121 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Baran	01985	950045	121 PCT
2. PO Cristian Perez	12940	933167	121 PCT
3. PO Antonino Lopiccio	06974	950779	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Nicholas Bacarella	Abuse: Police Officer Nicholas Bacarella entered § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
B . PO Robert Semioli	Abuse: Police Officer Robert Semioli entered § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
C . PO Nicholas Bacarella	Abuse: Police Officer Nicholas Bacarella searched § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
D . PO Robert Semioli	Abuse: Police Officer Robert Semioli searched § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
E . SGT Vasile Dubovici	Abuse: Sergeant Vasile Dubovici entered § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
F . SGT Vasile Dubovici	Abuse: Sergeant Vasile Dubovici searched § 87(2)(b) in Staten Island.	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)

Case Summary

On May 8, 2021, § 87(2)(b) called the Internal Affairs Bureau and filed this complaint. The CCRB received this complaint on May 17, 2021.

On May 8, 2021, at approximately 3:30 p.m., § 87(2)(b) received a phone notification from his surveillance system at his home on § 87(2)(b) in Staten Island. After reviewing his surveillance cameras, § 87(2)(b) saw that Police Officer Nicholas Bacarella and Police Officer Robert Semioli (both of the 121st Precinct) had opened the cellar doors to his basement and subsequently entered and searched the basement (**Allegations A and B, Abuse of Authority: Entry of Premises, § 87(2)(g)** (**Allegations C and D, Abuse of Authority: Search of Premises, § 87(2)(g)** § 87(2)(b) saw on his cameras that PO Bacarella and PO Semioli walked to and opened the front door to the house and allowed Sergeant Vasile Dubovici and Police Officer David Baran (both of the 121st Precinct) into the house. Sgt. Dubovici authorized an entry and search of the entire house (**Allegation E, Abuse of Authority: Entry of Premises, § 87(2)(g)** (**Allegation F, Abuse of Authority: Search of Premises, § 87(2)(g)** § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

No arrests or summonses resulted from this incident.

The investigation received BWC regarding this incident from the following officers, all of the 121st Precinct: PO Bacarella, PO Baran, Sgt. Dubovici, Police Officer Antonino Lopiccio, Police Officer Cristian Perez, and PO Semioli. The relevant aspects of these videos shall be discussed below (**BR 01-09**). § 87(2)(b) said that he had surveillance footage of this incident but did not provide it to the investigation.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Nicholas Bacarella entered § 87(2)(b) in Staten Island.

Allegation (B) Abuse of Authority: Police Officer Robert Semioli entered § 87(2)(b) in Staten Island.

Allegation (C) Abuse of Authority: Police Officer Nicholas Bacarella searched § 87(2)(b) in Staten Island.

Allegation (D) Abuse of Authority: Police Officer Robert Semioli searched § 87(2)(b) in Staten Island.

Allegation (E) Abuse of Authority: Sergeant Vasile Dubovici entered § 87(2)(b) in Staten Island.

Allegation (F) Abuse of Authority: Sergeant Vasile Dubovici searched § 87(2)(b) in Staten Island.

The following facts are undisputed. At approximately 3:30 p.m. on May 8, 2021, PO Bacarella and PO Semioli entered § 87(2)(b) through the house's cellar doors in the backyard of the property. PO Bacarella and PO Semioli entered the basement of the property, walked to the first floor, and opened the front door. Sgt. Dubovici and PO Baran then entered § 87(2)(b) through the front door. The four officers searched the house and left the property several minutes later.

In his CCRB interview (**BR 10**), § 87(2)(b) said that he was not present during this incident. On May 8, 2021, § 87(2)(b) was away from his home at § 87(2)(b) in Staten Island. No one else was home at the time. At approximately 3:30 p.m., § 87(2)(b) got a notification on his phone from his surveillance system. When he looked at his phone, he saw that several police officers had entered his home. Additional to the undisputed facts, § 87(2)(b) said that his surveillance cameras showed no one entering his home in the 30 minutes prior to the

officers entering and searching.

The investigation received an ICAD readout, 911 calls, and radio transmissions regarding this incident and established the following in regard (**BR 21**): on May 8, 2021, five individuals called 911 regarding a vehicle accident at Jewett Avenue and Haughwout Avenue. All the callers called between 2:28 p.m. and 2:34 p.m. The first caller informed the 911 dispatcher that a black male wearing a blue hoodie and jeans crashed a white BMW into a pole and ran towards Forest Avenue. Forest Avenue is one block south of Haughwout Avenue. Another caller described the fleeing driver as a slim 20-something 5'10" black male with short dreads, wearing a red hoodie and jeans. The first unit to arrive on-scene was ESU Truck 5 at 2:36 p.m. The 121st Precinct patrol sergeant, Sgt. Dubovici, was marked as arrived at 2:51 p.m. It is unclear from the EVENT readout the exact time of arrival of PO Bacarella and PO Semioli.

Sgt. Dubovici's first BWC (**BR 01**) timestamps his arrival at approximately 2:45 p.m. At the 01:00 timestamp, Sgt. Dubovici gets the following description of the fleeing male from bystanders: black male with dreads, wearing a navy-blue sweatshirt. The bystanders point southward towards Forest Avenue and tell Sgt. Dubovici that he ran off between a fence and the grey house that occupies § 87(2)(b). A bystander tells Sgt. Dubovici that the man told her that he did not want her to call 911.

PO Bacarella and PO Semioli did not activate their BWCs until after they opened the front door of the house (see **Allegations G and H**). Thus, the investigation has no footage of their initial entry and search of § 87(2)(b) through the cellar doors.

In his CCRB interview (**BR 11**), PO Bacarella said that he responded to a job regarding an overturned vehicle a few houses down from § 87(2)(b) in Staten Island. PO Bacarella and PO Semioli went to the scene and backed the job. The vehicle was overturned and there was a small crowd of bystanders. Some bystanders and officers provided a description of a black male who had fled the overturned vehicle. PO Bacarella did not remember any other specifics of the description. The bystanders said that the male ran away through the backyards of the houses near the overturned vehicle. PO Bacarella believed that the initial radio run specified the direction of flight of the male, but he did not remember specifics. PO Bacarella learned that the overturned vehicle had been stolen. Thus, a search for the perpetrator was called.

PO Bacarella started going backyard to backyard and made sure that things were okay. PO Bacarella spoke with an individual who was in their backyard next door to § 87(2)(b). The individual said that they did not see anyone run through their backyard. PO Bacarella came to § 87(2)(b) which was a detached home with a basement and two above-ground floors. No one was in the backyard of the property. PO Semioli was with PO Bacarella. In the backyard of the property, there were vertically opening cellar doors. PO Bacarella said that the doors appeared to be a "little open," as if someone had closed them from the inside. PO Bacarella did not recall if there were any other entry/exit points on the rear of the house. PO Bacarella was unable to see inside the house. PO Bacarella walked over to the cellar doors and opened them (they were unlocked), revealing a stairwell that led to the basement of the house. The door to the basement was open. Because the cellar door had been a little open and because the door to the basement itself was open, PO Bacarella believed that the perpetrator from the crashed vehicle ran into the house. PO Bacarella also believed this was possible given the proximity to the crashed vehicle and the statements from bystanders that the perpetrator ran through backyards. PO Bacarella and PO Semioli proceeded into the basement and checked to make sure there was no one inside. As he walked through the basement, PO Bacarella saw that there were some disheveled items (perhaps hang-dried clothes) on the steps and floor; it seemed like someone had knocked them over and run through the house. PO Bacarella heard the dog barking but did not remember if he heard any other noises at this point. PO Bacarella and PO Semioli proceeded to the first floor, where they discovered that the front door of the house was unlocked. PO Bacarella did not see any people in the house but believed there was a dog in a backroom off the kitchen on the first floor. PO Bacarella opened the door and PO Bacarella called for his supervisor, Sgt. Dubovici. PO Bacarella

told Sgt. Dubovici that they had discovered an open door and that they had been through the basement. Sgt. Dubovici authorized a search of the house. PO Bacarella cleared the house “room-to-room” to make sure that no one was hiding in the house and that no one was hurt. PO Bacarella looked underneath beds and inside closets. PO Bacarella cleared the house within several minutes.

PO Semioli’s statement (**BR 12**) was generally consistent with that of PO Bacarella. In his CCRB interview, PO Semioli said he entered the house because he believed that the perpetrator may have been hiding inside, given the proximity to the car crash, the description of the male fleeing through backyards, and the doors being open. Additionally, in PO Semioli’s experience responding to similar incidents, he has found that people are wont to hide in backyards, garages, and sheds. PO Semioli mentioned that he and PO Bacarella announced themselves as NYPD but did not hear a response. PO Semioli added that as he walked through the basement, there were clothes strewn on the floor that suggested that someone may have run through the basement. This also raised PO Semioli’s suspicion that someone was hiding inside the house.

PO Semioli’s and PO Bacarella’s BWCs (**BR 07-08**) both initiate at 3:06 p.m. per the videos’ timestamps. The BWCs show their search of the upper floors of § 87(2)(b) between the 01:35 and 03:59 timestamps. They visually inspect each room and open large storage furniture with their guns pointed. They do not find anyone. Both PO Semioli and PO Bacarella deactivate their BWCs prior to their exiting the house.

The following is depicted in Sgt. Dubovici’s BWC (**BR 06**) between the 08:25 and 12:00 timestamps. PO Semioli informs Sgt. Dubovici that the basement to § 87(2)(b) was open. PO Semioli also notes that he cleared the basement. Sgt. Dubovici approaches the front door of § 87(2)(b) as PO Semioli and PO Bacarella reenter the home. Sgt. Dubovici directs the two to slow down so all the officers can go inside together. PO Semioli tells Sgt. Dubovici that he and PO Bacarella will clear the upper floors. Sgt. Dubovici directs PO Semioli and PO Bacarella to clear the upper floors while Sgt. Dubovici and PO Baran clear the lower floors. Sgt. Dubovici visually inspects the entire first floor of the house and searches behind a couch. Sgt. Dubovici directs PO Semioli and PO Bacarella to exit through the basement and then exits the house.

In his CCRB interview (**BR 13**), Sgt. Dubovici said that he did not authorize PO Bacarella’s and PO Semioli’s initial entry into the basement of the house. Sgt. Dubovici said that the only information PO Bacarella and PO Semioli provided him was that they had found an open door to the basement. Sgt. Dubovici said that he ultimately authorized an entry and search of the full house because it was possible that a suspect entered the house and was hiding inside. Given the proximity of the house to the car crash, given that PO Bacarella and PO Semioli had said that there was an open door, and given that the suspect had not only fled the scene of an accident but presumably stolen the car, Sgt. Dubovici believed there were exigent circumstances at play. Sgt. Dubovici said that the potential for a suspect hiding inside the house presented a potential threat to both officers and the public. Sgt. Dubovici said that no officer recovered any evidence or contraband from the house. Sgt. Dubovici did not see any signs that someone had tried to hide inside the house.

The investigation did not plead allegations to PO Baran because Sgt. Dubovici directed him to enter and search the premises.

Per Payton v. New York, 445 US 573 (**BR 22**), the warrantless entry of a man’s house in order to arrest him is unreasonable in the absence of some one of a number of well-defined exigent circumstances, including hot pursuit, emergencies, certain dangerous situations, and consent.

§ 87(2)(g)

Regarding emergencies, per People v. Rodriguez, 77 A.D.3d 280 (**BR 14**), officers may only enter a house without a warrant if there are reasonable grounds to believe that there was an emergency at hand and an immediate need for their assistance for the protection of life or property,

and, if there is some reasonable basis, approximating probable cause, to associate that emergency with the area or place to be searched.

§ 87(2)(g)

The description given by bystanders — that a male had fled through backyards in a residential neighborhood § 87(2)(g)

§ 87(2)(g)

Finally, there was no one present at § 87(2)(b) to consent to an entry and search.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- PO Bacarella has been a member of service for four years and this is the first CCRB complaint to which he is a subject.
- PO Semioli has been a member of service for four years and has been named as a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Dubovici has been a member of service for 15 years and has been named as a subject in seven CCRB complaints and 14 allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of August 23, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (BR 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 10

Investigator: Ethan C. Waterman Inv. Ethan Waterman 06/06/2022
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 06/06/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

